

**IN THE
SUPREME COURT OF FANTASY FOOTBALL**
October Term, 2026 (Expedited to September)

MARC GOLDICH,
Appellant (Withdrawn),

No. 26-1

v.

GOD EMPEROR COMMISSIONER DYLUS,
Appellee (Capitulated).

**APPELLANT'S CONSOLIDATED OPPOSITION TO PATEL'S MOTION TO INTERVENE,
FLORIO'S REQUEST FOR RELIEF, AND ALL EFFORTS TO MOVE THE DRAFT BACK**

Proposed Intervenor Patel and Amicus Florio have now devoted eleven pages to undoing a scheduling accommodation that affects a fantasy football draft. Their filings are creative. Their central premise is not.

Appellant requested a 10:00 p.m. Draft because both Appellant and David face the same Back-to-School Night obligation. The Commissioner opposed the request, then moved the Draft to 10:00 p.m. and supplied his own family-based reason: the later time works better for his two-year-old daughter's bedtime. Appellant obtained complete relief and withdrew.

The resulting record therefore contains family considerations affecting three League households in favor of the present schedule. Against them, Patel invokes his third wedding anniversary and Florio invokes a 5:30 a.m. alarm. Appellant congratulates the former and sympathizes with the latter. Neither establishes that fantasy football should take precedence over obligations to one's children.

I. THE EQUITIES ARE NOT TWO AGAINST THE LEAGUE.

Patel and Florio repeatedly describe the 10:00 p.m. Draft as a private accommodation obtained by Appellant and imposed upon everyone else. The record establishes otherwise.

Appellant and David independently face the same Back-to-School Night conflict. The original 8:00 p.m. Draft therefore required two fathers to choose between participating meaningfully in the Draft and attending an event concerning their children.

The Commissioner then supplied a third and independent family-based reason supporting the same result: according to his own explanation, the 10:00 p.m. time is better for his daughter's bedtime. Thus, even accepting the Commissioner's insistence that Appellant's litigation had absolutely nothing whatsoever to do with his sudden adoption of the precise relief Appellant requested, family considerations affecting three League households favor the later Draft.

The competing burden is that other League members must stay awake later to draft imaginary football teams. Those burdens are not equivalent.

II. BACK-TO-SCHOOL NIGHT IS NOT "SOME OTHER BULLSHIT EXCUSE."

Proposed Intervenor devote remarkable effort to calculating the earliest conceivable moment at which Appellant and David could abandon Back-to-School Night, reach a parking lot, open the Sleeper app, and begin selecting football players.

They have mistaken the nature of the interest being protected.

Appellant did not seek sufficient time merely to remain physically present until the final scheduled minute and then flee to his vehicle. He sought the entirely ordinary ability to attend his children's school event, speak with

their teachers, leave the school, return home, and thereafter participate personally in a fantasy football draft. David is entitled to the same.

Neither Patel nor Florio establishes when David's obligations conclude, where David will be when they conclude, how long David requires to leave and return home, or why either father must begin drafting at the earliest moment he can physically access a telephone. Florio's proposed 8:30 p.m. accommodation is therefore not a finding.

It is a guess.

Fantasy football is entertainment. Back-to-School Night is a parental obligation.

This should not require a citation.

III. PATEL'S ANNIVERSARY PROVES APPELLANT'S POINT, NOT PATEL'S.

Patel explains that his own filing was late because he was observing his third wedding anniversary, an event whose date was fixed three years earlier by an authority he regards as greater than the Commissioner: his wife.

Appellant accepts the concession. Family obligations sometimes take precedence over fantasy football litigation.

That is substantially Appellant's point.

Appellant congratulates Patel on successfully remaining married for approximately 1,095 days. The achievement does not confer standing, and it does not establish that two fathers should curtail Back-to-School Night so Patel can draft earlier.

IV. THE PERSONS INCONVENIENCED BY THE RELIEF ARE NOT MEMBERS OF APPELLANT'S PUTATIVE CLASS.

Patel previously argued that “two is not a class” and that Rule 23 should not be asked to survive Appellant's theory. He now styles himself an “Absent Class Member.” The Court need not decide which Patel is correct. Both cannot be.

Florio's theory requires a different maneuver. He argues that the 10:00 p.m. schedule created a new class of injured League members and asks to be treated as an intervenor or as “the class representative the appellant forgot to be.”

Appellant did not forget to represent that class. It is not his class.

Persons allegedly inconvenienced by relief do not thereby become absent members of the class that sought the relief. Florio may believe the 10:00 p.m. Draft creates a different injury supporting a different claim by a different group of League members. He is free to litigate that claim in whatever tribunal the Commissioner has not yet abolished. He may not intervene as an absent member by redefining Appellant's putative class to include its opponents.

V. THE COMMISSIONER'S OWN THEORY DEFEATS THE REQUEST TO RESTORE 8:00 P.M.

Patel's merits theory remains that the Commissioner's discretion is absolute and that the operative question is whether the Commissioner feels like acting. Yet Patel asks the Court to enforce Wednesday's feelings against the Commissioner's later feelings. That is not a limiting principle. It is nostalgia.

If the Commissioner possesses the authority Patel attributes to him, then he possessed authority to move the Draft to 10:00 p.m. Florio fares no better by attacking the Commissioner's daughter's bedtime as an inadequate standard of review. The Commissioner did not need Florio's approval to exercise the very arbitrary authority on which this litigation was founded.

More importantly, the Commissioner's explanation confirms that the present schedule was not supported solely by Appellant's personal convenience. It independently accommodates the Commissioner's own family schedule as well.

VI. FLORIO'S MARKET-STRUCTURE THEORY DOES NOT REQUIRE ADJUDICATION.

Florio additionally contends that the Draft is an unregistered derivatives market and that a 10:00 p.m. start constitutes after-hours trading in an illiquid instrument.

That contention is beyond the scope of this proceeding, although Appellant appreciates counsel finally identifying an argument less plausible than the Commissioner's.

CONCLUSION

Proposed Intervenor's have established that Patel had an anniversary, Florio wakes up early, the Commissioner has a toddler, and Appellant and David have Back-to-School Night. Everyone would prefer that fantasy football conform perfectly to his own schedule.

Only one category of those conflicts requires multiple League members to choose between the Draft and an obligation concerning their children. The Commissioner ultimately accommodated it.

The motions and requested relief should be denied. The Draft should proceed at 10:00 p.m.

Appellant should attend Back-to-School Night. David should attend Back-to-School Night. The Commissioner should put his daughter to bed. Patel should remain married. Florio should get some sleep.

Everyone else should draft at 10:00.

Respectfully submitted,

/s/ Marc Goldich

MARC GOLDICH

Appellant, Pro Se

Recipient of Complete Relief

Still Undefeated in Motions Practice

September 5, 2026